

Smt. S. Nuthana vs Mr. K S Chethan on 3 October, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:35596
CP No. 231 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 3RD DAY OF OCTOBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT

CIVIL PETITION NO. 231 OF 2023

BETWEEN:

SMT. S NUTHANA
W/O K S CHETHAN
AGED ABOUT 26 YEARS
MATTURU VILLAGE (SANSKRIT VILLAGE)
KASABA HOBALI
SHIVAMOGGA TALUK
SHIVAMOGGA-577201.

...PETITIONER

(BY SRI. PREREET JAIN B, ADV.)

AND:

MR. K S CHETHAN
S/O SHANKAR SHETTY
AGED ABOUT 33 YEARS
DOOR NO.2136

Digitally signed by
A K CHANDRIKA
Location: High

Court of Karnataka
UTTARA BADAVANE
3RD CROSS, R C ROAD
HASSAN-573201.

...RESPONDENT

(BY SRI. BAGOJI VIJAYAKUMAR GURAPPA, ADV.)

THIS PETITION IS FILED UNDER SECTION 24 OF CPC 1908,

PRAYING TO PASS AN ORDER TRANSFERRING THE CASE IN M.C. NO.312/2022 PENDING ON THE FILE OF PRL. JUDGE, I ADDL. FAMILY COURT, HASSAN TO FAMILY COURT AT SHIVAMOGGA FOR DISPOSAL IN ACCORDANCE WITH LAW, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

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NC: 2023:KHC:35596

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ORDER

The petitioner, wife of respondent is before this Court under Section 24 of CPC with a prayer to transfer M.C.No.312/2022 on the file of the Principal Judge, I Additional Family Court at Hassan to the Family Court at Shivamogga for disposal, in accordance with law.

2. Heard the learned counsel Sri.Prereet Jain for petitioner/wife and learned counsel Sri.Bagoji Vijaykumar Gurappa for respondent/husband. Perused the civil petition papers.

3. Learned counsel for the petitioner/wife would submit that marriage of petitioner and respondent was solemnized on 19.04.2018 and from the marriage, they have no issues. It is submitted that petitioner/wife is not working and she is residing at Shivamogga with her parents. It is submitted that it would be difficult for petitioner/wife to travel from Shivamogga to Hassan to attend the proceedings initiated by respondent/husband in NC: 2023:KHC:35596 M.C.No.312/2012 under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955.

4. Learned counsel Sri.Bagoji Vijaykumar Gurappa for respondent/husband would submit that the respondent/husband has filed objections to deny the allegations made against respondent/husband in the petition, but respondent/husband has no objection to transfer the proceedings from Hassan to Shivamogga.

5. In a petition filed under Section 24 of CPC for transfer of proceedings, more particularly, in matrimonial cases, the Court shall have to take note of the inconvenience or hardship that would be caused to the wife along with social and financial status of the parties.

6. The petitioner/wife in her petition has stated with regard to certain proceedings and has made certain allegations against respondent/husband. To deny the said allegations, respondent/husband has filed objections. This Court at this stage would not go into the allegations or merits of the case. But, at this stage, it is for this Court to NC: 2023:KHC:35596 find out whether petitioner would be entitled for transfer of proceedings from Hassan to Shivamogga. Since the petitioner/wife is not working and she has no income of her own, if the prayer of the petitioner/wife is not allowed, petitioner/wife would suffer more hardship and inconvenience. Moreover, respondent/husband has

no objection for transfer of proceedings. Hence, the following:

ORDER

1) Civil Petition filed under Section 24 of CPC is allowed.

2) The proceedings in M.C.No.312/2022 pending on the file of the Principal Judge, I Additional Family Court, Hassan is directed to be transferred to the Court of Family Court at Shivamogga for further consideration in accordance with law.

SD/-

JUDGE NC